

26STCV13770 26STCV13770

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Case Number: 26STCV13770 Hearing Date: September 18, 2026 Dept: 406

MARJAN JAHANSHAH, I,

Plaintiff,

v.

AFSHIN ASHER, et al.,

Defendants.

Case No.: 26STCV13770

Hearing Date: September 18, 2026

[TENTATIVE]

order RE:

defendants' demurrer to first amended
complaint

BACKGROUND

On April 29, 2026, Plaintiff Marjan

Jahanshahi filed this action against Defendants Afshin Asher and Asher Law

Group, APC. Plaintiff filed the operative First Amended Complaint on May 18,

2026, asserting (1) professional negligence, (2) breach of fiduciary duty, and

(3) fraudulent concealment.

On August 6, 2026, Defendants filed the instant demurrer to the FAC. Plaintiff filed an opposition on September 4, 2026. Defendants filed a reply on September 11, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Parcels Decl.)

DISCUSSION

According to the FAC, “[t]his action arises from Defendants’ preparation, handling, transmission, and later characterization of materials affecting Plaintiff’s property rights, financial obligations, economic interests, and financial exposure associated with the transaction and Property, without maintaining or producing a coherent, contemporaneous documentary record sufficient to identify what materials, if

any, affected Plaintiff's rights or obligations at any relevant time." (FAC ¶ 1.) "Plaintiff cannot determine what document, if any, affects her rights, obligations, authority, economic interests, or financial exposure, while she remains personally obligated on the mortgage and responsible for ongoing liabilities related to the Property." (Id., ¶ 2.)

However, the FAC is uncertain. The allegations vaguely describe the handling of unspecified documents, and it is unclear what the transaction pertained to or what Defendants' involvement was. The FAC does not describe the relationship between Plaintiff and Defendants. Plaintiff does not allege that she retained Defendants for legal services. Thus, the FAC fails to allege any relationship giving rise to a professional duty of care, fiduciary duties, or a duty to disclose. (See *Fox v. Pollack* (1986) 181 Cal.App.3d 954, 959 ["an attorney's duty to his or her client depends on the existence of an attorney-client relationship. If that relationship does not exist, the fiduciary duty to a client does not arise"].) Plaintiff's opposition provides no further clarity and relies on material in Plaintiff's declaration, which is external evidence that the Court cannot consider on a demurrer.

CONCLUSION

Defendants' demurrer is SUSTAINED
with leave to amend.